

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Nord Howell	Team: Squad #17	CCRB Case #: 202408109	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/14/2024 8:40 PM	Location of Incident: Broadway between West 147th street and West 146th street	18 Mo. SOL 2/14/2026	Precinct: 30		
Date/Time CV Reported Wed, 08/14/2024 9:38 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 08/14/2024 9:38 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Maciej Urbanski	21667	935888	SRG 04
2. SGT Joseph Podkalicki	02010	944901	SRG 05
3. AC Ruel Stephenson	00000	916748	PBMN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Mohamed Makiz	10882	956868	SRG 3
2. LT Charles Miele	00000	939037	SRG 05

Officer(s)	Allegation	Inv. Div. Recommendation
A . AC Ruel Stephenson	Force: Assistant Chief Ruel Stephenson used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . AC Ruel Stephenson	Force: Assistant Chief Ruel Stephenson used physical force against an individual.	B . Within NYPD Guidelines
C . SGT Joseph Podkalicki	Off. Language: Sergeant Joseph Podkalicki made remarks to an individual based upon the gender of an individual.	C . Substantiated
D . SGT Joseph Podkalicki	Discourtesy: Sergeant Joseph Podkalicki spoke discourteously to an individual.	D . Substantiated
E . PO Maciej Urbanski	Off. Language: Police Officer Maciej Urbanski made remarks to an individual based upon the gender of an individual.	E . Substantiated
F . PO Maciej Urbanski	Discourtesy: Police Officer Maciej Urbanski spoke discourteously to an individual.	F . Substantiated

Case Summary

On August 14, 2024, § 87(2)(b) filed this complaint with the CCRB via the online intake form. This case involved a non-campus 2024 Middle East Protest.

At approximately 8:40 PM on August 14, 2024, § 87(2)(b) was walking on Broadway between West 147th Street and West 146th Street in Manhattan when she encountered a protest. § 87(2)(b) turned around and began to walk out of the crowd when Assistant Chief Ruel Stephenson of Patrol Borough Manhattan North walked up to § 87(2)(b) and pushed her (**Allegation A: Force – Within NYPD Guidelines**). AC Stephenson then pushed another civilian in the crowd who fell into § 87(2)(b) (**Allegation B: Force – Within NYPD Guidelines**).

During this incident SGT Joseph Podkalicki of Strategic Response Group (SRG) 5 called a civilian a “bitch” (**Allegation C: Offensive Language – Substantiated; Allegation D: Discourtesy – Substantiated**). PO Maciej Urbanski of SRG 4 also called a civilian a “bitch” (**Allegation E: Offensive Language – Substantiated; Allegation F: Discourtesy – Substantiated**).

There were no arrests effected, or summonses issued as a result of the incidents investigated in this case.

The CCRB received five body-worn camera (BWC) videos (**BR 01**). There is no other video of this incident.

Findings and Recommendations

Allegation (A) Force: Assistant Chief Ruel Stephenson used physical force against § 87(2)(b)

Allegation (B) Force: Assistant Chief Ruel Stephenson used physical force against an individual.

At approximately 8:40 PM on August 14, 2024, (**BR 02**) § 87(2)(b) was walking south on the west side of Broadway. Between West 147th Street and West 146th Street § 87(2)(b) noticed a crowd of approximately 20 people standing on and blocking approximately half the sidewalk. § 87(2)(b) did not see any members of the crowd standing in the street or obstructing traffic. § 87(2)(b) walked on the sidewalk past the crowd when she heard AC Stephenson tell the crowd to clear the sidewalk. § 87(2)(b) turned around and began to walk north. Without issuing further commands, AC Stephenson then pushed § 87(2)(b) with two hands on her back, causing her to stumble without falling. § 87(2)(b) turned and saw AC Stephenson with his hands extended toward her after the push. § 87(2)(b) continued moving north. Approximately one minute later AC Stephenson pushed another civilian causing that civilian to fall into § 87(2)(b). A third civilian caught § 87(2)(b) before she fell to the ground. § 87(2)(b) did not see AC Stephenson push the civilian, but he was the closest officer when the push occurred. § 87(2)(b) described AC Stephenson as a Black male with broad shoulders and chest, approximately six feet tall, bald and in his early 40s, wearing an NYPD uniform with a white shirt and black pants. § 87(2)(b) did not identify AC Stephenson by name.

SGT Podkalicki (**BR 03**) identified AC Stephenson in multiple BWC clips including his own BWC (**BR 04**) at runtime 09:34 and Lieutenant Charles Miele of SRG 5’s BWC (**BR 05**) from runtime 09:45 to 10:00.

SGT Podkalicki’s BWC (**BR 04**) addresses this allegation. At runtime 09:30, SGT Podkalicki is standing on the sidewalk on Broadway facing north towards West 147th Street. AC Stephenson approaches from behind SGT Podkalicki and says, “He’s next. Let’s take him. Move them back,” while pointing north into a crowd of protesters. Multiple officers, including AC Stephenson then begin walking north into the crowd of protesters. Runtime 09:30 corresponds to 8:46 PM.

LT Miele’s BWC (**BR 05**) addresses this allegation. At runtime 09:50, AC Stephenson can be seen pushing multiple civilians north towards West 147th Street away from an arrest being

effected by multiple officers. § 87(2)(b) cannot be identified in this clip. Runtime 09:50 is equivalent to 8:47 PM.

Per AC Stephenson's NYPD record (BR 06) shows that he is a Black male, standing 6'1", weighing 225 pounds with an average build and is completely bald. AC Stephenson was 55 years old at the time of the incident.

§ 87(2)(b) walking data from her Fitbit app from August 14, 2024, (BR 07) provides context for these allegations. § 87(2)(b)

AC Stephenson stated (BR 08) that on August 14, 2024, he was the "incident commander" for a protest at Broadway and West 135th Street. After that protest ended, many of the protesters moved north to Broadway and West 146th Street. AC Stephenson stated that he arrived at Broadway and West 146th Street at approximately 8:35 PM. AC Stephenson did not recall interacting with anyone of § 87(2)(b) description, or any physical interaction he had with any specific civilian. AC Stephenson stated that he did likely push or shove civilians during this incident in order to control the crowd and clear the sidewalk. AC Stephenson stated that the sidewalk needed to be cleared to ensure public safety and order.

Per NYPD Patrol Guide Procedure 221-02 (BR 10), when officers are attempting to gain control over or compliance from a subject, they should comply with NYPD Patrol Guide Procedure 221-01. Per NYPD Patrol Guide Procedure 221-01 (BR 09), there are a number of factors that NYPD officers should consider when determining what is a reasonable level of force including actions taken by the subject and the duration of the action, the number of subjects in comparison to the number of NYPD officers, and whether there is a hostile crowd or agitators.

Although § 87(2)(b) cannot be identified in any BWC of this incident, her Fitbit data places her on Broadway between West 146th and West 147th Streets, where she said that she was at the incident time. Although AC Stephenson cannot be seen on BWC making any contact with § 87(2)(b) he was, of the confirmed officers at the incident location at the incident time, the only clear match to § 87(2)(b) description of the alleged subject officer and has thus been identified as the subject of these allegations. The crowd control actions by AC Stephenson captured on BWC, including pushing protesters, § 87(2)(g)

It is therefore recommended that Allegation A and Allegation B be closed as **Within NYPD Guidelines**.

Allegation (C) Discourtesy: Sergeant Joseph Podkalicki spoke discourteously to an individual.

Allegation (D) Offensive Language: Sergeant Joseph Podkalicki made remarks to an individual based upon the gender of an individual.

Allegation (E) Discourtesy: Police Officer Maciej Urbanski spoke discourteously to an individual.

Allegation (F) Offensive Language: Police Officer Maciej Urbanski made remarks to an individual based upon the gender of an individual.

SGT Podkalicki's BWC (BR 04) addresses this incident. At runtime 00:01, SGT Podkalicki is walking north on Broadway. There are dozens of NYPD officers standing in the street at the

intersection of Broadway and West 146th Street. There are dozens of protesters standing on the sidewalk and in the street on the west side of Broadway north of West 146th Street. SGT Podkalicki stands in the intersection until runtime 06:40 when he walks onto the sidewalk and begins to walk north up Broadway. Part of the way up the block SGT Podkalicki joins a group of officers who are attempting to push a crowd of protesters north. Multiple officers tell the crowd to move back. Civilians can be heard verbally refusing to move back. SGT Podkalicki uses his hands to push civilians back. At runtime 09:18, SGT Podkalicki and other officers take a civilian to the ground. Other officers then handcuff that civilian. At runtime 09:34 AC Stephenson approaches the crowd and points into it and says “He’s next. Let’s take him. Move them back.” SGT Podkalicki then says, “Take them in. Form a line. Protect.” SGT Podkalicki moves forward and begins to push multiple civilians back. At runtime 09:48 SGT Podkalicki pushes a civilian and says, “Back off, bitch.” SGT Podkalicki continues to push civilians back until runtime 09:55. He then stands in a line with other NYPD officers blocking access to the southern half of the block until the crowd disperses at runtime 12:30.

PO Urbanski’s BWC (**BR 11**) also addresses this incident. At runtime 02:15, PO Urbanski and other NYPD officers walk north along Broadway and stand behind a line of NYPD officers who have created a barricade with bicycles. At runtime 03:25 PO Urbanski approaches the barricade and stands opposite a group of civilians. A civilian is telling officers to “keep [their] hands to [themselves].” PO Urbanski tells the civilians to be quiet and multiple civilians reply, “Shut the fuck up.” PO Urbanski pushes one civilian back who is directly in front of him as protestors also pull the civilian away from the officer. The protestors complain about PO Urbanski’s push and call him a “psycho.” PO Urbanski then backs away from the civilians. At runtime 04:10, PO Urbanski pushes a civilian who is walking behind the barricade next to officers. The civilian points at PO Urbanski and says something which is inaudible. PO Urbanski raises his balled fists in front of his face and says, “Bring it, bitch.” Multiple officers appear to direct PO Urbanski away from civilians, and he moves away.

SGT Podkalicki stated (**BR 03**) that on August 14, 2024, he received a post change and responded to a protest at Broadway and West 146th Street. Upon arrival SGT Podkalicki saw at least 50 protesters and was told to move the protesters away from a restaurant. SGT Podkalicki and other officers formed a line and moved the protesters back by issuing verbal commands. SGT Podkalicki stated that he did not recall using any profanity, including “bitch,” during this incident. Upon reviewing his own BWC SGT Podkalicki stated he heard someone say, “Back off, bitch,” but that it was not him and he did not recognize the voice.

PO Urbanski stated (**BR 12**) on August 14, 2024, he was responding to a radio request for additional officers to Broadway and West 146th Street. Upon arrival PO Urbanski saw over 200 protesters. PO Urbanski described the protesters as uncooperative, angry, and volatile. Other NYPD officers were attempting to disperse the crowd by creating a barrier using their bikes. PO Urbanski was standing behind the barricade and attempting to assist these officers when he noticed a civilian cross the barricade. PO Urbanski grabbed this civilian and escorted him back across the barricade to ensure the integrity of the barricade and ensure officer safety. PO Urbanski stated that he did say, “Bring it, bitch,” to a civilian while raising his open palms. PO Urbanski stated that the individual whom he called “bitch” was challenging him and he was attempting to force the civilian to back down. PO Urbanski stated that although saying “bitch” was unprofessional, it succeeded in causing the civilian to back down. PO Urbanski stated that based on his own review of his BWC, he knew that the individual he called a “bitch” was a male.

Per NYPD Patrol Guide Procedure 200-02 (**BR 13**) NYPD officers should respect civilian’s dignity and “render our services with courtesy and civility.” Per NYPD Administrative Guide Procedure 304-06 (**BR 14**) it is prohibited for NYPD officers to use “discourteous or disrespectful remarks regarding another person’s... gender [or] gender identity/expression.”

Although SGT Podkalicki denied saying “bitch” to a civilian during this incident, he can be heard saying it on BWC, at a consistent audio quality to previous statements he made captured on

BWC. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations C** to **Allegation F** be closed as **Substantiated**.
And

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (**BR 15**).
- SGT Podkalicki has been a member of service for 17 years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- AC Stephenson has been a member of service for 29 years and has been a subject in seven CCRB complaints and 16 allegations, of which one was substantiated.:
 - 200101696 involved a substantiated allegation of failure to process a civilian complaint against AC Stephenson. The Board recommended Command Discipline and the NYPD imposed Command Discipline A.
 - § 87(2)(g) [REDACTED]
[REDACTED]
- PO Urbanski has been a member of service for 20 years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of April 2, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 16**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 17

Investigator:	<u>Nicholas Nord Howell</u>	<u>Inv. Nord Howell</u>	<u>04/09/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Benjamin Shelton</u>	<u>IM Benjamin Shelton</u>	<u>04/10/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date